

1 **SENATE FLOOR VERSION**

2 April 22, 2025

3 ENGROSSED HOUSE
4 BILL NO. 2103

By: Moore and Harris of the
House

5 and

6 Gollihare of the Senate

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9 An Act relating to the Judicial Nominating
10 Commission; providing for recusal of member based
11 upon certain relationship based on consanguinity or
12 affinity; providing for removal of member based on
13 violation of requirement with respect to recusal;
14 requiring disclosure with respect to certain judicial
15 campaign contributions; prescribing requirement
16 related to address for purposes of determining
17 eligibility of members of the Oklahoma Bar
18 Association for membership on the Judicial Nominating
19 Commission; providing for codification; and providing
20 an effective date.

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23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 26 of Title 20, unless there is
created a duplication in numbering, reads as follows:

A. No member of the Judicial Nominating Commission who is
related to an applicant for any position for which the Commission is
responsible to submit nominations to an appointing authority
pursuant to Section 3 of Article VII-B of the Constitution of the

1 State of Oklahoma shall participate in the decision-making process
2 with respect to such applicant if the Commission member is related
3 to the applicant within the third degree of consanguinity or
4 affinity. If a member of the Judicial Nominating Commission
5 participates in the decision-making process with respect to an
6 applicant in contravention of the requirement of this subsection,
7 the member shall be immediately removed from the Commission and
8 shall be permanently forbidden from being appointed to the
9 Commission.

10 B. No later than ten (10) days after receiving the final list
11 of applications for an open position which is set to come before the
12 Judicial Nominating Commission, a member of the Judicial Nominating
13 Commission shall make full disclosure of the date and amount of any
14 contribution made by such member to the judicial campaign of any
15 person making application to the Commission for their possible
16 nomination to an appointing authority pursuant to the provisions of
17 Section 3 of Article VII-B of the Constitution of the State of
18 Oklahoma. The Administrative Director of the Courts shall prescribe
19 a form to be used for such purpose. The completed forms shall be
20 posted in a conspicuous manner on a website maintained by or on
21 behalf of the Judicial Nominating Commission and shall be accessible
22 until the position for which nominations are to be submitted by the
23 Commission has been filled.

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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 27 of Title 20, unless there is
3 created a duplication in numbering, reads as follows:

4 With respect to members of the Oklahoma Bar Association who may
5 be eligible for appointment or election to the Judicial Nominating
6 Commission, the address for the person as reflected in the records
7 of the State Election Board shall be used for purposes of
8 determining the residence of such person for purposes of eligibility
9 for membership on the Judicial Nominating Commission.

10 SECTION 3. This act shall become effective November 1, 2025.

11 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
12 April 22, 2025 - DO PASS
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